



EMPOWER THE WATCHDOGS OF WRONGDOING

THE WHISTLEBLOWER PROTECTION ACT (1989)

IN CONTEXT

FOCUS

Employment law

BEFORE

1863 The False Claims Act is probably the world's first whistleblowing law to curb fraud by defense contractors in the Civil War.

1966 The US Freedom of Information Act aims to make government business "open to public scrutiny."

AFTER

1998 In Britain, the Public Interest Disclosure Act protects whistleblowers in public or private institutions, if the disclosed information is in the public interest.

2010 The US Dodd–Frank Act includes protection for whistleblowers in its regulation of financial institutions.

2015 Concerns mount that the Dodd–Frank Act harms smaller banks and lenders.

Employees who highlighted misconduct, deliberate or not, in any US federal agency were first given protection by 1989's Whistleblower Protection Act. The Act offered guarantees to whistleblowers that retaliation, such as demotions or suspensions, would not be taken against them.

Although the US was leading the world with this legislation, and despite it being fortified by the Whistleblower Protection

Enhancement Act in 2012, the legislation has rarely achieved its intended impact. Its protections do not include immunity from legal action by an employer—a fact that dissuades other workers from speaking up.

A 2006 US Supreme Court ruling, in *Garcetti v. Ceballos*, was discouraging, with even the First Amendment guarantee of freedom of speech deemed inapplicable for whistleblowing public employees such as Richard Ceballos, a Los Angeles deputy district attorney.

The 1989 Act also excluded US intelligence agency employees. The 1998 Intelligence Community Whistleblower Protection Act (ICWPA) gave them only limited rights; the Act was amended in 2014 to extend their immunity.

The Dodd–Frank Act, passed after the financial crisis of 2007, aimed to curb excessive risk-taking by financial institutions and protect consumers. This proved successful, partly because 10–30 percent of any money recouped may be paid to the whistleblower. ■



Protecting employees who disclose government illegality, waste, and corruption is a major step toward a more effective civil service.

Whistleblower Protection Act



See also: The Universal Declaration of Human Rights 222–229 ■ The International Covenant on Civil and Political Rights 256–257 ■ Megan's Law 285